

All Evidence law. Exit Exam Part III, NEAEA 2003 – 2015 E.C

1. Mr X accused of murder quickly confesses immediately after the charge is read out for him, which of the following is the best approach a judge need to take under the circumstance? (2 Marks)

A. The judge needs to give a verdict of guilt automatically as there is no need of hearing the public prosecutors evidences.

B. The judge needs to ignore the confession and proceed with the hearing of the public's prosecutor evidence.

C. The judge needs to try to see if there is any other motive on the part of the accused for the confession other than wanting to tell the truth to determine whether he needs to hear the public prosecutors' evidence or not

D. All

E. A & C

2. Assuming that in one corruption case the burden of proof is validly shifted from the prosecutor to the accused; the standard of proof required of the accused would be . (2 Marks)

3. The court does not need evidence when there is either _____ or _____, to name a few. (1 Mark)

4. _____ evidence is admissible in _____ system but not in common law legal system except in certain circumstances.

5. State the difference between direct evidence and circumstantial evidence. (4 points)

6. "A search warrant may not authorize seizure of self-incriminating evidence." Do you agree? Why or why not? (4 points)

7. What does a lawyer intend to prove to the court during cross-examination? (4 points)

8. Explain real evidence (including examples), and comment on the level of reliability of documentary evidence and the factors thereof (10 points)

9. In principle, hearsay evidence is not admissible; but there are certain exceptional circumstances where such evidence could be admissible. Which of the following grounds fall under this exception?

A. Dying declaration

B. Statements made in the ordinary course of business

C. Declarations against interest

D. Statements of opinion as to the existence of a public or general right or custom

E. All of the above.

10. In a murder trial, which of the following could be regarded as demonstrative evidence?

A. The victim's body

B. Weapon used, if any

C. Casts of footprints found at the scene of the crime

D. Evidence showing the lifestyle of the alleged murderer

E. All except "D".

11. Which of the following is not a means of authentication of documentary evidence?

- A. Admission of authorship by the writer**
- B. Proof of signature or handwriting**
- C. Opinions of experts**
- D. "A" and "C"**
- E. None.**

12. Which of the following are the circumstances under which the contents of a document are proved by employing secondary evidence under the Ethiopian Draft Evidence Rules?

- A. When the original is shown or appears to be in possession or power of the person against whom the document is sought to be proved**
- B. When the existence of the condition or contents of the original have been proved to have been admitted in writing by the person against whom it is proved**
- C. When the original has been destroyed, lost, or when the party offering evidence or its contents cannot for any other reason produce it in reasonable time**
- D. "A" and "C"**
- E. All of the above.**

13. One of the following is true about burden of proof under Ethiopian law.

- A. It may refer to burden of production and burden of persuasion.**
- B. As the issue (claim) in a case varies, the burden of proof shifts from one party the other.**
- C. The plaintiff shall bear the burden of proving the cause of action.**

D. When the defendant raises an affirmative defense, he shall bear the burden of proof.

E. All of the above.

14. One of the following is true regarding examination-in-chief under Ethiopian law?

A. It is a process whereby a party who has called a witness to give evidence questions him/her with the view to elicit evidence favorable to the examiner.

B. It is applicable in both civil and criminal cases.

C. Leading questions are prohibited in examination-in-chief.

D. Answers 'A' to 'C'

E. Answers 'A' and 'C'

15. One of the following is not true regarding cross examination under Ethiopian law:

A. Cross examination is the right of the party against whom the witness testifies to probe questions to undermine the credibility of the witness.

B. Unlike in the case of examination-in-chief, in the case of cross examination leading questions can be posed to a witness.

C. It applies only to criminal cases.

D. "A" and "B."

E. None.

16. Which of the following is a sound statement regarding the relationship between evidence and procedural laws (rules) of Ethiopia?

- A. Both are adjective laws.**
- B. Evidence law can be part of procedural law.**
- C. Procedural laws are integral part of evidence law.**
- D. "B" and "C".**
- E. "A" and "B".**

17. Which one of the following is not valid about judicial admissions in civil cases?

- A. Facts could be expressly admitted in pleadings.**
- B. General (evasive) denial may amount to admission.**
- C. Facts admitted need not be proved.**
- D. "B" and "C".**
- E. None.**

18. Is bad character of the accused considered as relevant evidence in criminal proceedings? Explain.

19. Explain the notion of "standard of proof"

20. State the difference between direct evidence and circumstantial evidence. (4 points)

21. Explain real evidence (including examples), and comment on the level of reliability of documentary evidence and the factors thereof (10 points)

22, In a case that involves injury caused to the victim due to negligence while driving a vehicle, one of the following is not relevant in assessing damages incurred by the victim:

A. Medical expenses

B. Lost income

C Time of the accident

D. Disability

E. Pain and suffering.

23. The Law of Evidence does not deal with

A. collection and gathering of evidence

B. presentation of evidence at trial

C, determination of the particular material facts which a party to litigation must prove in order to succeed in his/her claim or defense and to show his entitlement to relief or to obtain a conviction

D. weighing of evidence

E. Admissibility of evidence

24. Which one of the following is correct in respect of direct evidence?

A. It refers to evidence that is based on personal knowledge or observation and that, if true, proves a fact without inference or presumption.

B. It signifies evidence which is applied to the principal fact, indirectly, or through the medium of other facts, from which the principal fact is inferred.

C. It refers to evidence that is supplementary to evidence already given in court.

D. It refers to evidence that has any tendency to make the existence of any fact that is of consequence to the determination of the action more probable or less probable than it would be without the evidence.

E. It stands for a statement, other than one made by the declarant while testifying at the trial or hearing, offered in evidence to prove the truth of the matter asserted.

25. One of the following is not a point of difference between the law of evidence that is applicable in civil and criminal proceedings.

A. Admissibility of hearsay evidence c/

B. Standard of proof

C Burden of proof

b. Cross-examination of witnesses

E. Privilege against self-incrimination.

26. Exclusionary rules of evidence are primarily associated with

A. common law jurisdictions ~

B. civil law jurisdictions

C. socialist legal systems

D Scandinavian countries

E hybrid legal systems.

27. One of the following is a rule of evidence that does not basically operate to protect an accused in criminal proceedings:

A. exclusion of character evidence .r--

B. public interest immunity

C. right to remain silent

D. burden of proof

E. standard of proof.

28. One of the following is a form of evidence produced before courts for inspection which includes material objects, physical characteristics of any person or animal and demeanour of witnesses:

- A. Documentary evidence Real evidence**
- C. Oral evidence**
- D. Forensic evidence**
- E. Electronic evidence**

29. Briefly describe the Major differences that exist between the rules of evidence in criminal" civil cases.

30. Which of the following may not be considered as a relevant fact to prove or disprove a fact under inquiry in a given civil or criminal proceeding?

- A. A fact which is the occasion, cause or effect of that fact under investigation.**
- B. A fact which constitutes part of the same transaction with that of the fact under inquiry.**
- C. A fact which manifests similar characteristics with that of the fact under inquiry.**
- D. A fact which afforded an opportunity for the occurrence of that fact under inquiry.**
- E. A fact which shows the motive behind the occurrence of that fact under inquiry.**

31. Evidence that an accused person is of bad reputation is:

- A. necessarily relevant even though it is inadmissible to prove the offence with which that person is charged**
- B. relevant when the bad character of that accused is a fact in issue**

C. sometimes irrelevant and becomes inadmissible to prove the offence with which that person is charged in such exceptional circumstances

D. a dependable proof to establish the commission of the offence for which the person is charged

E. relevant and always admissible to prove the offence with which that person is charged.

32. Which one of the following is true under the present criminal justice system of Ethiopia?

A. Silence of an accused may sometimes be considered as amounting to admitting of the commission of the criminal act in the charge.

B. An antecedent of an accused may not be disclosed before judges determine the kind and extent of punishment that an accused person has to serve.

C. An accused may be cross-examined on his statement once s/he gave a statement during her/his defense evidence.

D. A court may not put any question to an accused who gave a statement on her/his behalf during her/his defense evidence.

E. An accused may be required to disclose his/her ground of defense and the nature and type of evidence s/he intends to introduce.

33. Which one of the following may not be considered as a crucial and legally acceptable factor in the assessment of the credibility of a witness?

A. Gender of the witness.

B. Age of the witness.

C. Personal interest of the witness in the outcome of the case.

D. Consistency or otherwise of the witness's testimony.

E. Temperament of the witness.

34. Normally shift (reversal) of burden of proof relates to:

- A. Judicial notice**
- B. Evidential burden of proof**
- C. Presumption of innocence**
- D. Legal burden of proof**
- E. Irrebutable presumption of law**

35. Under the present civil and criminal justice system of Ethiopia, judges:

- A. can cross-examine witnesses of parties with a view to facilitate the search of truth.**
- B. cannot call any witness who is not listed as a witness of either the plaintiff or the defendant.**
- C. are passive actors both at the pre-trial and during trial stages.**
- D. can put any question to the witnesses of parties at any stage of examination of such witnesses when they find it necessary for the just decision of cases at their hand.**
- E. cannot call any witness before the witnesses of the plaintiff and the defendant are heard.**

36. Evidence or any other means of proof is often required to prove or disprove:

- A. judicial notice**
- B. facts in issue or relevant facts**
- C. presumption of law**
- D. presumption of innocence**
- E. formal admission.**

37. Which one of the following statements is true regarding hearsay evidence?

- A. Dying declaration is admissible in every criminal case.**
- B. Any hearsay evidence is admissible in every civil case.**
- C. Some hearsay evidence could be admissible in civil as well as criminal cases in common law systems.**
- D. Hearsay evidence is necessarily admissible in civil as well as criminal cases in civil law systems.**
- E. Hearsay evidence relates only to oral evidence.**

38. Which one of the following could be considered at trial as a form of real evidence?

- A. Exhibits.**
- B. Laboratory test.**
- C. Confession or informal admission.**
- D. DNA test.**
- E. Inscription found on a tombstone.**

39. Which one of the following presumptions is taken without proof of the basic fact?

- A. Irrebuttable mandatory presumptions**
- B. Rebuttable mandatory presumptions**
- C. Presumption of payment**
- D. Permissive presumptions**
- E. Presumption of innocence**

40. Which one of the following is wrong about judicial notice of adjudicative facts?

- A. A fact should be known by the judge.**
- B. A fact should be part of ordinary common knowledge around the jurisdiction of the court.**
- C. A fact need not be known worldwide.**
- D. A fact need not be known by experts.**
- E. Non-existence of, or less dispute on, the facts in general**

41. Which one of the following is true?

- A. In the Ethiopian law, extrajudicial admission may be inadmissible whereas judicial admission is always admissible and conclusive evidence.**
- B. Similar occurrences to the fact in issue are always relevant except evidence to prove mental status of the suspect.**
- C. The bad character of the accused could never be admissible in criminal cases.**
- D. In civil cases character is irrelevant except when character by itself is an issue.**
- E. Informal admission is irrelevant at all.**

42. Imposing the burden of proof on a public prosecutor in criminal cases emanates from the constitutional idea of the right:

- A. not to be arrested without sufficient evidence.**
- B. to be represented by a legal counsel.**
- C. against self-incrimination of the accused.**
- D. to be informed of the reason of arrest.**
- E. to be regarded as proud citizen of the nation.**

43. Capacity is presumed under Article 196 of the Ethiopian Civil Code. What, in your opinion, is the most acceptable ground that can justify this evidential rule?

- A. Due to the difficulty to prove capacity**
- B. Existence of high probability for capacity**
- C. Neutrality of capacity to juridical acts**
- D. Impossibility to prove capacity**
- E. For the purpose of procedural convenience be better may**

44. Beyond reasonable doubt standard in criminal cases explained by one of the following:

- A. It means virtually certain.**
- B. It requires absolute certainty.**
- C. It requires equal standard of proof with civil cases.**
- D. It means proof with reasonable doubt.**
- E. It is applicable only for constitutional litigations.**

45. One of the following methods of evidence gathering approach is different from the others.

- A. Trial by compurgation.**
- B. Committing ordeal.**
- C. Confession of suspect.**
- D. Test of DNA.**
- E. Testimony supported by oath.**

46. One of the following is NOT necessarily a subject matter for law of evidence:

- A. Weight of evidence.**
- B. Admissibility of testimony.**
- C. Jurisdiction of courts.**
- D. Locating burden of proof.**
- E. Standard of proof.**

47. One of the following is not an essential rationale for exclusion of hearsay evidence:

- A. Risk of misperception.**
- B. Faulty memory.**
- C. Possibility of ambiguity.**
- D. Relevance fact with fact in issue.**
- E. Existence of spontaneity.**

48. An exception to exclusionary rule of hearsay evidence is:

- A. Faulty memory of witness.**
- B. Error in narration of fact.**
- C. Dying declaration.**
- D. The risk of insincerity.**
- E. Real perception.**

49. Which one of the following is mandatory to be considered by courts?

- A. All facts in litigation.**
- B. Verdicts of civil bench.**
- C. Precedent of higher courts.**
- D. Verdict of criminal bench.**
- E. Judicial notice of law.**

50. Which one of the following is not necessarily essential in evaluating the relevant evidence of fact forming part of the same transaction?

- A. Linkage of fact with issue.**
- B. All events of fact in transaction.**
- C. Transactions during a crime scene.**
- D. Spontaneous declaration in relation to fact in issue.**
- E. Existence of consecutive transactions.**

51. Credibility of witnesses may not be impeached by:

- A. Prior inconsistent statement.**
- B. Impartiality of witness.**
- C. Defective capacity to portray events.**
- D. Observable bias.**
- E. Irrational assertion.**

52. One of the following forms of evidence consists of things which can convey first hand impression in relation to disputable fact:

- A. Demonstrative evidence.**
- B. Documentary evidence.**

C. Indirect evidence.

D. Direct evidence.

E. Confession of a suspect.

53. Discuss the methods of impeaching the credibility of a witness?

54. Distinguish between facts in issue and relevant facts (3 marks)

55. What is the probative value status of expert evidence in Ethiopia in criminal cases? (4 marks)

56. Which statement is correct about the nature of Ethiopian Law of Evidence?

A. It defines rights, duties and privileges.

B. It is incorporated under parts of procedural laws suitably. X

C. It establishes effective system of adjudication of cases before x courts.

D. It may not share some common purposes with procedural laws. x

E. Rules of evidence are found in an independent code.

57. Which approach clearly describes rules of evidence in a common law legal system?

A. Rules of evidence are sparsely distributed in substantive and procedural laws.

B. parties are considered as competent witnesses in their own cases.

C. The greatest weight and importance is attached to documentary evidence.

D. The system employs the inquisitorial system of evidence gathering.

E. Judges play active role in examining witnesses.

58. Which standard of proof is the highest level of proof?

- A. Beyond doubt standard**
- B. Balance of probabilities**
- C. Clear and convincing**
- D. Beyond reasonable doubt**
- E. preponderance of evidence**

59. Which statement is correct about circumstantial evidence?

- A. It may constitute produced documents which judges interpret.**
- B. Isolation of circumstances may lead to wrong inference.**
- C. No generalizations are drawn from commonly held assumptions.**
- D. It may prove the existence of alleged facts directly.**
- E. Hearsay is categorized under circumstantial evidence.**

60. Which one of the following is correct under Ethiopian Evidence law?

- A. In civil cases, courts cannot reject irrelevant evidence at any x stage.**
- B. To be admissible, an item of evidence shouldn't be relevant. X**
- C. Relevant evidence may not be excluded for whatever reason.x**
- D. Some irrelevant evidence is admissible as a rule.**
- E. Evidence rules are scattered here and there in our laws.**

61. Which statement is valid about degree of proof in general?

- A. Clear and convincing evidence is the lowest degree of proof. x**
- B. The degree of proof in civil and criminal case varies.**
- C. Reasonable doubt standard is a burden imposed upon prosecution.**
- D. Balance of probabilities is the medium degree of proof.**

E. Beyond reasonable doubt standard is the most lenient degree of x proof.

62. Which one is irrelevant evidence under Ethiopian evidence rule?

A. Motive.

B. Subsequent occurrence to a fact in issue.

C. Conviction judgment of criminal court on civil matters.

D. Disclosed bad character after conviction.

E. Character evidence in civil case.

63. Which one of the following statements is valid?

A. A fact which Minors didn't deny is deemed to be admitted in civil case.

B. In civil cases, courts need no further proof where judicial admission is made.

C. Evasive denial made to allegations of damages is considered to be admitted.

D. In criminal cases, the effect of judicial admission is destructive. x

E. Admission should be specific necessarily.

64. Among the given alternatives, which statement is correct about burden of proof?

A. Evidentiary burden may not shift in civil cases.

B. Legal burden may shift in civil and criminal cases.

C. In criminal cases, burden of proof may not shift to the accused in certain scenarios.

D. The principle of presumption of innocence imposes burden of proof.

E. Parties to civil case are required to prove certainty of their assertions.

65. Choose the correct statement about examination of witnesses.

- A. Leading question is allowed at each stage of examinations.**
- B. Courts may not allow leading question when requested to refresh memories.**
- C. During cross examinations, witnesses of the other side may be discredited.**
- D. Re-examination is confined to issues covered in examination in chief.**
- E. Courts have no role in examination of witnesses.**

66. Assuming that police officer H obtains search warrant to search the premise of Ms X in want of some material evidence related to a crime of forgery. One is necessarily true: (2 Marks)

- A. H may not search X 's premise before securing X's consent.**
- B. H may search the premise only in day time.**
- C. H may in no way seize materials not listed in the search warrant.**
- D. H may seize a material so long as it is not self -incriminatory.**
- E. None**

67. In principle, hearsay evidence is not admissible; but there are certain exceptional circumstances where such evidence could be admissible. Which of the following grounds fall under this exception?

- A Dying declaration**
- B. Statements made in the ordinary course of business**
- C. Declarations against interest**
- D. Statements of opinion as to the existence of a public or general right or custom**
- E. All of the above.**